

TENTATIVE RULINGS

FOR: July 02, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. A will be heard in Dept. B ****

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Melissa Rochelle Carreta Alamilla

21PR000101

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on July 06, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Seth Daniel Mata

21PR000108

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on July 06, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Patsy Ann Mallmann

24PR000299

[1] FIRST ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR

[2] REVIEW HEARING

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on July 06, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In the Matter of the Andrew J. Lipnosky Irrevocable Trust

26-59329

PETITION FOR ORDER TO TERMINATE THE TRUST AND DISTRIBUTE ITS ASSETS TO THE BENEFICIARY

TENTATIVE RULING: The Petition is GRANTED.

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****at 9:00 a.m.****

Conservatorship of Jerome Darnell Wilson

26MH000095

PETITION FOR CHANGE OF VENUE

TENTATIVE RULING: Good cause appearing and no oppositions being on file, the petition for change of venue is GRANTED. The case is set for a review hearing on September 3, 2026, at 8:30 a.m. in Dept. B, at the Napa County Superior Court. The hearing is to confirm receipt of the notification from the Sacramento County Superior Court that it has received the transferred case. (Prob. Code, § 2217 [requiring a review hearing within two months]; Welf. &

Inst. Code § 5350 [stating that procedures for LPS conservatorships shall be the same as that provided for probate conservatorships with certain exceptions not relevant here].)

The conservator is instructed to contact the Civil Filing Division at the Napa County Superior Court to initiate transfer and pay, subject to any applicable fee waiver, the: (1) transfer fees from the Napa County Superior Court; and (2) the filing fee for the Sacramento County Superior Court.

Once initiated by Conservator, the clerk is directed to transmit to the clerk of the court in Sacramento County a certified or exemplified copy of this order, together with all papers in the proceeding on file. (*Id.*, § 2216, subd. (a).)

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Charles J Berry v. Pope Valley Elementary Unified School District et al

19CV000733

DEFENDANT POPE VALLEY UNION ELEMENTARY SCHOOL DISTRICT’S MOTION TO COMPEL SUBPOENA COMPLIANCE

TENTATIVE RULING: The motion is GRANTED. The Commission is ordered to produce, within 30 days of this ruling, the responsive documents identified on its privilege log, attached as Exhibit E to the Declaration of Joseph A. Halabrin, but only to the extent they disclose (1) any statements, arguments, and/or other evidence proffered by Plaintiff in connection with the administrative hearing before the Commission, or (2) the general procedural process employed for the hearing. The Commission is entitled to redact any information it contends is protected by third-party privacy rights, attorney work product, attorney-client privilege, or the deliberative process privilege. The Commission’s production shall be accompanied by an amended privilege log to identify the documents withheld and/or redactions made.

To the extent Defendant disagrees with the Commission’s redactions or continued withholding of documents, it is directed to meet and confer with the Commission in a good faith effort to informally resolve the dispute. The meet and confer efforts shall include consideration of a protective order to address any confidentiality/privacy concerns by the Commission. Only once those efforts are exhausted may Defendant file a subsequent motion to compel compliance, outlining in a detailed declaration its meet and confer efforts.

Defendant shall provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in

effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant Pope Valley Union Elementary School District (“Defendant”) moves, pursuant to Code of Civil Procedure sections 1985.3, 1987.1, 2017.010, 2020.010, 2020.020, 2023.010, 2023.030, 2020.410 et seq., and 2025.480,¹ for an order compelling non-party California Commission on Teacher Credentialing (“Commission”) to produce all records responsive to the subpoena served upon the Commission on June 3, 2025, as modified by court order dated November 17, 2025, and amended by court order dated April 22, 2026 (“Subpoena”).²

B. LEGAL STANDARD

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein ... the court, upon motion reasonably made by [a party] ... after giving counsel notice and an opportunity to be heard, may make an order ... directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (§ 1987.1, subds. (a)-(b).)

A party moving to compel a non-party’s compliance with a document subpoena must set forth specific facts showing good cause justifying the discovery sought by the subpoena. (*Calcor Space Facility, Inc. v. Sup.Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 223-24 (*Calcor*).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland, supra*, 95 Cal.App.4th at 98.)

C. DISCUSSION

The Subpoena at issue requests: Any and all records concerning the receipt, investigation into, and resolution of, the allegations raised by Defendant’s then-Superintendent, Kenneth J. Burkhart, in his letter addressed to the Commission, dated May 9, 2018.

By way of the present Motion, Defendant now limits the Subpoena document request to: “only those documents disclosing any statements, arguments, and/or other evidence proffered by Berry in connection with the administrative hearing in question, as well as the procedural process employed.” (“Narrowed Subpoena”) (Mem., 8:23-26; see also Reply, 2:25-28.)

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

² Several of the names and dates in the Notice of Motion and Memorandum are inaccurate. The Court herein references the accurate names and dates in this order.

1. Defendant Has Met its Burden to Set Forth Specific Facts Showing Good Cause to Justify the Narrowed Subpoena

Defendant presents the following facts in support of its showing of good cause: Plaintiff asserts a single cause of action for procedural due process against Defendant, by which Plaintiff alleges that Defendant did not provide him a name-clearing hearing to respond to the statements made about him by Defendant's then-Superintendent, Kenneth J. Burkhart ("Superintendent Burkhart"). (Mem., 2:11-15, 3:11-27; Fourth Amended Complaint ("4AC"), filed 11/20/24, at 14:5-15:10, 16:27-17:1.) Superintendent Burkhart's subject statements were sent to the Commission and co-Defendant Napa County Office of Education. (Mem., 2:3-10; 4AC, at 14:25-15:10.) Part of Defendant's defense is that the Commission provided Plaintiff with a name-clearing and that such hearing satisfies any procedural due process concerns. (Mem., 2:15-17; Reply, 2:7-12.) Plaintiff testified at his deposition that he participated in a hearing before the Commission. (Mem., 2:17-18, 4:2-22; see also Declaration of Jimmie E. Johnson ("Johnson Decl."), ¶ 2, Exh. A (131:5-17, 133:17-134:9).)

Defendant now seeks documents, maintained by the Commission, which disclose the statements, arguments, and/or other evidence proffered by Plaintiff in connection with the hearing before the Commission, as well as the procedural process employed by the Commission. Defendant explains that such documents are necessary to: (1) establish that the Commission provided Plaintiff with an adequate opportunity to respond to the statements made by Superintendent Burkhart in support of Defendant's defense that it did not violate Plaintiff's procedural due process by not providing a name-clearing hearing itself; and (2) weigh upon Plaintiff's credibility as a witness to the extent any inconsistencies exist between the Commission's records and Plaintiff's deposition testimony and other discovery responses.

In Opposition, the Commission argues that Defendant has made no showing of an interest in disclosure. Not so, as outlined above.

The Commission further argues, without citations to any authority, that disclosure of the subpoenaed documents is not necessary because Defendant already has evidence that Plaintiff admitted to participating in a hearing before the Commission, which admission, alone, is enough to show that he was afforded a hearing. "Therefore, additional records are not necessary to prove Plaintiff was afforded a hearing." (Opp., 10:11-15.) This argument misapplies the standard for discovery, which is that a civil litigant's right to discovery is broad and encompasses "any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (§ 2017.010.) Thus, the fact that Defendant has one source of evidence in support of its defense does not preclude, or make less relevant or unnecessary, the discoverability into additional sources/forms of evidence in support thereof. Moreover, as Defendant explains in Reply, "an opposing party's own, self-filtered summary" of the subject hearing can hardly be argued as sufficient evidence to prevail on its defense. (Reply, 5:26-6:3.)

Finally, the Commission argues—again, without any citations to authority—that, whether the Commission held a hearing for Plaintiff and its processes for, and the outcome of, the hearing

have no bearing on any issue of fact in the case because Plaintiff's due process claim is against the District, not the Commission. (Opp., 10:24-27.) This argument, however, fails to address Defendant's points and authority that the name-clearing hearing required by state and federal procedural due process need not be provided by the same agency who allegedly committed the wrongdoing—"the only question is whether the employee was provided the opportunity to clear their name." (Reply, 6:4-28, citing *Mustafa v. Clark County School Dist.* (9th Cir. 1998) 157 F.3d 1169, 1179 [post-termination arbitration hearing provided sufficient opportunity]; *Williams v. Dept. of Water & Power* (1982) 130 Cal.App.3d 677, 684-85 [California courts rely on federal due process jurisprudence when considering the rights of a government employee to a name-clearing hearing]; *Caraway v. Town of Columbus* (D. Mont. Mar. 30, 2018) 2018 U.S. Dist. LEXIS 54770, *15 [appeal of termination to separate government agency provided sufficient opportunity]; see also Mem., 6:23-25.)

Based on the foregoing, Defendant has shown good cause for the Narrowed Subpoena and the Commission's arguments to the contrary are rejected. The burden, therefore, shifts to the Commission to justify its objections.

2. The Commission Has Not Justified its Objections to Restrict, Outright, the Production of Documents Responsive to the Narrowed Subpoena

The Commission objects to the Subpoena³ on the following grounds: (1) the Commission cannot comply with the Subpoena due to confidentiality and disclosure prohibitions found in Education Code sections 44230, 44245, and 44248; (2) the requested records are not "business records" of the Commission and are equally available to, or in possession of, Defendant; and (3) the Subpoena seeks information protected by the investigatory privilege, the official information privilege (Evid. Code § 1040), the Information Practices Act (Civ. Code §§ 1798 *et seq.*), the Public Records Act (Gov. Code §§ 7923.600 *et seq.*), the attorney work product doctrine, the attorney-client privilege, and the deliberative process privilege.

As to the first point advanced in Opposition, the Commission contends that the Subpoena seeks information that is deemed confidential under Education Code sections 44230 and 44245, and that the Commission is prohibited, under Education Code section 44230, subdivision (a), from disclosing confidential information without a court order. The Commission acknowledges that a court may issue an order requiring disclosure after the moving party has made the proper showing. (Opp., 7:15-16.) The Commission argues that Defendant has not provided sufficient reason to overcome the statutory prohibition here. (Opp., 7:16-17.)

The Commission does not articulate the standard for what it contends to be a "proper showing." The Court assumes the Commission is referring to the "good cause" showing under *Calcor*, as that is the only standard referenced and discussed by the Commission. (See Opp., 5:7-8, 11:14-12:3.) In light of the Court's above finding of a good cause showing by Defendant under *Calcor*, and the Court's below finding that the Commission has not justified its objections to outright restrict production of responsive documents, a Court order requiring disclosure appears appropriate here.

³ Notably, the Commission does not appear to acknowledge the Narrowed Subpoena.

Furthermore, Defendant argues that a subpoena, on its own, constitutes an order by the court for purposes of Education Code section 44230, subdivision (a)(2). (Reply, 3:12-4:13, citing *Corenbaum v. Lampkin* (2013) 215 Cal.App.4th 1308, 1338.) While *Corenbaum* states that “a subpoena is equivalent to a court order,” it did not involve a subpoena to the Commission and its statement was not expressly made for purposes of Education Code section 44230, subdivision (a)(2). Thus, it is not exactly on point. That said, it is unnecessary for the Court to resolve the question of whether the previously issued subpoena serves as a court order for purposes of Education Code section 44230, subdivision (a)(2), given that the Court is hereby ordering disclosure.

As to the second point advanced in Opposition, the Commission argues that, to the extent the Subpoena seeks materials prepared by any school district, other agency or entity, or Plaintiff, the Commission is not the custodian of such records and the records are equally available to, or in the possession of, Defendant. Defendant does not address in Reply whether or not it attempted to collect the same or similar category of documents from Plaintiff, himself. While Defendant is encouraged to do so, the Commission provides no authority prohibiting a party from seeking documents from a direct source (albeit a non-party) to, at least, verify the accuracy of documents produced by an opposing party.

The Commission relies on *Cooley v. Sup. Ct.* (2006) 140 Cal.App.4th 1037, 1045 for the contention that “business records” are limited to records “prepared by” the subpoenaed entity and do not necessarily include records merely “maintained by” the entity. (Opp., 12:12-16, citing Evid. Code, § 1561, subds. (a)(3), (a)(5).) While the Commission makes an accurate statement of law, the Commission fails to sufficiently apply that law to the responsive records here—i.e., why each document identified on its privilege log, including the recording of the hearing itself, was not “prepared by” the Commission. Moreover, as argued in Reply, *Conservatorship of S.A.* (2018) 25 Cal.App.5th 438, 447-48, interpreted Evidence Code section 1561 and *Cooley* as allowing custodian affidavits to authenticate nonparty business records by attesting they were prepared or compiled by the entity. Finally, Evidence Code section 1560 defines “record” as including “every kind of record maintained by a business.” (Evid. Code, § 1560, subd. (a)(2), emphasis added.)

Based on the foregoing, the Court does not find that the Commission has justified its objection on the grounds that the Narrowed Subpoena seeks documents equally available to Defendant or outside the scope of permissible “business records.”

As to the third point advanced in Opposition, the Commission recites several statutory and non-statutory provisions protecting the privacy and privilege of certain information, without meaningful discussion of how they either apply to specific responsive documents or outweigh Defendant’s need for the information/documents. (Opp., 7:19-11:11.) “Courts must ... place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 557.) The Court addresses only those provisions which the Commission provided at least minimal discussion thereof.

The Commission contends that there is a strong interest in protecting the confidentiality of third-party witnesses and victims, as well as Commission employees, and the mental processes by which the Commission reached decisions. The Commission further argues that some of the documents sought are also protected by attorney-client privilege and/or the attorney work-product doctrine.

The Commission’s argument appears to ignore the narrowed scope of the Subpoena—to be limited solely to documents disclosing (1) statements, arguments, and/or other evidence proffered by Plaintiff and (2) the procedural process employed. This narrowing by Defendant presumably invites the Commission to redact the names and other identifiers of third-party witnesses and victims and Commission employees, or information concerning the deliberations of the Commission panel members and/or communications with Commission legal counsel. This is confirmed by Defendant in Reply. (Reply, 4:26-5:2.)

Specifically with respect to the privacy of third parties, although the Opposition is accompanied by a privilege log listing 17 responsive documents withheld from the Commission’s production, the Opposition does not refer to the privilege log to show the existence of any documents containing third-party witnesses or victims. The Court’s review of the privilege log indicates that, for three documents, it notes: “Redactions made for Third Party Information and Private Personal Information.” (Declaration of Joseph A. Halabrin (“Halabrin Decl.”), ¶ 10, Exh. E.) The Commission offers no reason why third-party privacy cannot be sufficiently maintained by such redactions. Nor does the Commission offer any reason why this confidentiality cannot be sufficiently maintained by a protective order between counsel and the parties in this matter.

With respect to the attorney work product doctrine, the attorney-client privilege, and the deliberative process privilege, the narrowed scope does not compel the Commission to produce documents reflecting this information. As confirmed by Defendant in Reply, Defendant does not object, and expects, the Commission to redact such information. While the Narrowed Subpoena seeks documents showing the procedural process employed for the hearing, Defendant expressly does not seek any internal deliberations or mental processes. (See, e.g., Mem., 7:26.) Rather, it appears to the Court that Defendant seeks documents containing non-privileged/non-private information, which demonstrate, in general, the procedural process employed, in support of Defendant’s defense that Plaintiff was provided an adequate opportunity to clear his name.

Based on the foregoing, the Court does not find that the Commission has justified its objection on the grounds that privacy and privilege protections categorically restrict, outright, the production of responsive documents.

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Elizabeth Saldivar v. George Loudis et al

25CV000506

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to July 30, 2026, to permit Applicant to provide proof of service of the notice and moving papers on Elizabeth Saldivar.

While the Declaration of Counsel indicates service of the moving papers by personal service, it fails to evidence when service was made, fails to evidence service of the Notice of Hearing, and states that a Proof of Service will be filed.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY’S MOTION TO COMPEL
COMPLIANCE WITH SUBPOENAS TO DLA PIPER LLP

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company (“**Federal**”) moves, pursuant to Code of Civil Procedure section 2031.310,⁴ to compel: (i) third-party DLA Piper LLP (“**DLA Piper**”) to produce documents pursuant to Federal’s January 30, 2026 Subpoena to DLA Piper; and (ii) Plaintiffs Thomas Pollock (“**Pollock**”), Eileen Tabios, and Galatea Vineyards and Winery, LLC (collectively, “**Plaintiffs**”) to produce a supplemental privilege log identifying the names of all senders, recipients, and copyees of the documents at entry nos. 1, 3, and 4, which were

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

withheld from DLA Piper’s production responsive to Federal’s December 10, 2026 Subpoena based on Plaintiffs’ assertions of privilege.

DLA Piper and Plaintiffs filed a joint opposition. They first note the procedural irregularity of Federal combining distinct discovery disputes, with differing standards, burdens, and factual issues, against a party and non-party separately, into a single motion. The Court agrees with DLA Piper and Plaintiffs that Federal’s proceeding by a single motion as to separate disputes relating to separate subpoenas is unhelpful to the analysis of the discrete issues. However, DLA Piper and Plaintiffs provide no authority prohibiting this course of proceeding, and have provided substantive oppositions to each issue. The Court first discusses the relevant background as to both issues together and then breaks down each issue / “motion” separately.

B. RELEVANT BACKGROUND

The present matter arises from a fire insurance dispute regarding Plaintiffs’ residence following a June 2024 fire, known as the Crystal Fire, allegedly started by a neighboring property. (Second Amended Complaint (“**SAC**”), ¶ 21.) Plaintiffs and Federal are also separately litigating a fire insurance dispute related to Plaintiffs’ property following the 2020 Glass Fire. (*Id.*, ¶¶ 37-41.)⁵ Plaintiffs allege that the 2024 fire caused additional extensive damage to their property, including knocking out the electricity and water servicing the property. (*Id.*, ¶ 44.) The SAC asserts 15 total causes of action, eight of which are asserted against Federal for: Unfair and Unlawful Business Practices, Breach of Contract, Declaratory Judgment, Breach of Implied Covenant of Good Faith and Fair Dealing, Negligent Misrepresentation, Fraud, Elder Abuse, and Negligence. (*Id.*, pp. 32-52.)

On December 10, 2025, Federal issued a subpoena to DLA Piper (“**December Subpoena**”). (Declaration of Brittany Fowler (“**Fowler Decl.**”), ¶ 6, Exh. 1.) DLA Piper was Pollock’s employer from August 1, 2023 to July 24, 2025, where Pollock worked as a corporate attorney. (*Id.*, Exh. 5, at 21-22.) Pollock attributes his separation from DLA Piper to Federal’s purported conduct, and he seeks lost income of more than \$58,000 per month, representing his monthly compensation at DLA Piper. (*Id.*, Exh. 5, at 25-27 [“Plaintiff had been unable to fully perform his professional obligations to DLA Piper LLP (US) due to the significant time and resources required to investigate, document, and seek relief for his claims against Defendants as well as meet those obligations that Chubb refused to assist with and/or exacerbated in violation of Plaintiffs’ insurance policy covering the time period of the June 5, 2024 Fire.”].)

The December Subpoena requested, in relevant part, communications relating to the June 2024 fire, the Glass Fire, and Plaintiff’s insurance claims arising out of the fires, which request was further narrowed by the parties to only such communications that related to Plaintiff’s work on his own case, as opposed to DLA Piper’s communications in general. (*Id.*, Exhs. 1, 9, 15.) Plaintiffs and DLA Piper objected to the December Subpoena on attorney client privilege grounds. (*Id.*, Exhs. 3-4, 11.)

On January 30, 2026, Federal issued a further subpoena to DLA Piper (“**January Subpoena**”), requesting DLA Piper’s policies relating to the use of email or internet at DLA

⁵ *Pollock v. Federal Ins. Co.*, Case No. 3:21-cv-09975-JCS (N.D. Cal.). (See Opposition, 5:8-12.)

Piper from July 1, 2023 to August 1, 2025. (*Id.*, Exh. 2.) The purpose of the January Subpoena was to test Plaintiffs’ privilege objection as to the responsive documents withheld from the December Subpoena. (Mem., 1:3-12, 2:19-26; Fowler Decl., Exh. 9.) DLA Piper objected to the January Subpoena, asserting that the information is not reasonably calculated to lead to the discovery of relevant, admissible evidence; the request is overbroad and unduly burdensome to DLA Piper as a third party; and the request seeks confidential and proprietary information which DLA Piper has taken precautions to protect the disclosure thereof. (*Id.*, Exhs. 8, 11.)

Following the parties’ meet and confer efforts, DLA Piper/Plaintiffs produced documents responsive to the December Subpoena and provided Federal with a privilege log reflecting 18 documents that were withheld from the production, based on Plaintiff’s privilege objections. (*Id.*, Exh. 12.) DLA Piper explained that it reviewed its documents for responsiveness and transferred all responsive documents to Plaintiffs’ counsel, who reviewed and logged them for privilege and produced the non-privileged ones. (*Id.*, Exhs. 10, 15.) DLA Piper has not produced any documents responsive to the January Subpoena, asserting that any such documents contain confidential and propriety information.

C. MOTION TO COMPEL DLA PIPER’S COMPLIANCE WITH JANUARY SUBPOENA

1. Legal Standard

Federal fails to cite any applicable statutory authority in support of its motion. Section 2031.310, cited in the Notice of Motion, applies only to *parties*. Nevertheless, DLA Piper acknowledges the governing statutory authority—section 1987.1—in Opposition and substantively responds. (See Opposition, 7:9-10.) Thus, the Court overlooks the deficiency.

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein ... the court, upon motion reasonably made by [a party] ... after giving counsel notice and an opportunity to be heard, may make an order ... directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (§ 1987.1, subds. (a)-(b).)

Pursuant to California’s Civil Discovery Act, a civil litigant’s right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; see *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].)

A party moving to compel a non-party’s compliance with a document subpoena must set forth specific facts showing good cause justifying the discovery sought by the subpoena. (*Calcor Space Facility, Inc. v. Sup.Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 223-24.) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of

relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

2. Discussion

DLA Piper objected to the January Subpoena on the ground that their firm policies on email and internet use contain confidential and propriety information. DLA Piper does not assert a claim of privilege or attorney work product. Thus, Federal can meet its burden on the motion to show good cause by a fact-specific showing of relevance—*i.e.*, how the discovery sought might reasonably assist it in evaluating its case, preparing for trial, or facilitating a settlement. The Court finds that Federal has failed to meet its burden.

Federal argues that DLA Piper’s policies will assist Federal in assessing Plaintiffs/DLA Piper’s claim of privilege for documents withheld in response to Federal’s December Subpoena. Specifically, Federal argues that DLA Piper’s policies will assist it in exploring Pollock’s reasonable expectation of privacy in those emails, a factor to be considered when balancing the competing interests of privilege and disclosure. Federal goes on: “If DLA Piper informed Mr. Pollock that his firm email accounts were ‘not private, may be monitored,’ or ‘may be used only for business purposes,’ he may have consented to disclosure of emails sent or received by those accounts and therefore waived any privilege over those communications.” (Mem., 6:17-20.)

Federal’s moving papers make clear that it does not contend that DLA Piper’s policies are *directly* relevant to the case. Rather, Federal’s argument is solely that the policies are reasonably calculated to lead to the discovery of other relevant and potentially discoverable evidence—*i.e.*, the emails withheld from the December Subpoena. In this indirect scenario, a showing of fact-specific relevance for the policies necessarily includes a showing of relevance for the underlying emails. In other words, the fact that the policies might be relevant, in general, to a party’s assessment of a privilege is not a fact-specific showing of relevance to *this case*.

The Court understands that the present motion is not one to compel production of the underlying emails, *i.e.*, to defeat the privilege objections (for which there is no doubt Federal must show “good cause” for the underlying emails). However, the *only* purpose/relevance advanced by Federal for compelling the subject policies is to challenge the privilege objections asserted with respect to the withheld emails responsive to the December Subpoena. The Court can think of no other use for the policies, and Federal has articulated none. If the sole purpose/relevance of the policies is to challenge the privilege asserted for the underlying emails, the relevance of the underlying emails should be discussed. (See *Williams v. Sup. Ct.* (2015) 236 Cal.App.4th 1151 [“To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”].)

Thus, even assuming *arguendo* that Federal has shown that DLA Piper's policies are relevant to the general assessment of privilege objections, Federal has failed to show the relevance of the subject emails for which the privilege objections were asserted, and for which the policies are purportedly relevant. The fact that the underlying emails may be "responsive" to the December Subpoena, and Federal's cursory attempt in one sentence to explain the purpose of the December Subpoena is insufficient. (See Mem., 2:7-9.)

Even considering Federal's brief explanation for the December Subpoena, the precise relevance of the withheld emails to the case is not clear to the Court. According to Federal, the December Subpoena was issued to request documents "narrowly tailored to the issues relevant in this case." (Mem., 2:10-12.) The only relevance of DLA Piper to this case, as articulated by Federal's Motion, is that Pollock is claiming lost income damages from his former employment with DLA Piper. (Mem., 2:7-9.) The withheld emails, pertaining to Pollock's work on his own case against Federal, do not immediately strike the Court as relevant to Pollock's lost income claim. To the extent Federal is contending that it subpoenaed Pollock's former employer to discover Pollock's communications regarding the present case, Federal does not explain (or show with evidentiary support) why it believes DLA Piper would have such responsive documents (although that fact appears to be undisputed), nor does Federal discuss the facts of the present case at all to show the relevance of the discovery requests to the case. The Court's understanding of the facts of the case came entirely from its review of the SAC. While the Court reviewed the SAC on its own to get up to speed on the facts, it is not the Court's obligation to apply those facts to a moving parties' theories where the party has failed to do so. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Because Federal has failed to show the relevance of the underlying emails for which it contends the policies are relevant, the Court is unable to find fact-specific relevance of, or "good cause" for, the policies themselves. Thus, Federal has failed to meet its burden on the Motion, and the burden does not shift to DLA Piper/Plaintiffs to justify their objections. The Motion to compel DLA Piper to comply with the January Subpoena is therefore DENIED. This ruling renders it unnecessary for the Court to consider DLA Piper/Plaintiffs' additional arguments in Opposition, including that the policies are not relevant to assessing privilege in the first place and that their objections are justified.

D. MOTION TO COMPEL PLAINTIFFS TO PRODUCE A SUPPLEMENTAL PRIVILEGE LOG IDENTIFYING NAMES IN CONNECTION WITH DOCUMENTS WITHHELD FROM DLA PIPER'S PRODUCTION RESPONSIVE TO THE DECEMBER SUBPOENA

1. Legal Standard

Federal fails to discuss any statutory authority governing privilege logs, or *any* authority in support of a motion to compel a privilege log. Nevertheless, DLA Piper/Plaintiffs substantively respond to the argument. (See Opposition, pp. 13-17.) Thus, the Court overlooks the deficiency.

The parties appear to agree that, although the December Subpoena was directed toward DLA Piper, DLA Piper has completed its obligations thereunder (reviewing and collecting responsive documents), and that the responsive documents are now in the possession, custody, and control of Plaintiffs, who made the decision of which documents to withhold or produce and who prepared the subject privilege log. In this context, the Court finds it appropriate to apply authority governing *party* discovery to Federal's request to compel a supplemental privilege log.

A party responding to document demands with an objection based on a claim of privilege must (1) identify "with particularity" the document falling within any category of demand to which the objection is being made; (2) set forth clearly the extent of the objection; and (3) provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. (§ 2031.240, subds. (b), (c)(1).) When there are purported deficiencies in the responding party's privilege log, "the propounding party's remedy [is] to compel the responding party to provide a more detailed privilege log that identifie[s] each document with particularity and to present sufficient factual information to allow the propounding party and the court to evaluate each privilege claim." (*Catalina Island Yacht Club v. Sup. Ct.* (2015) 242 Cal.App.4th 1116, 1128.)

2. Discussion

Federal seeks an order compelling Plaintiffs to produce a supplemental privilege log identifying all individuals who sent, received, or were copied on three specified documents withheld from DLA Piper's production, at entry nos. 1, 3, and 4.

The three withheld documents are responsive to two categories of document demands to DLA Piper: (1) all documents and communications relating to the Crystal Fire or Glass Fire on the Property and (2) all documents and communications relating to Pollock's insurance claims at the Property arising out of the Crystal Fire or the Glass Fire. (See Separate Statement, pp. 1, 6.) Plaintiffs withheld a single individual's name from all three documents on privilege and third-party privacy grounds. (Fowler Decl., Exh. 18; Declaration of April M. Strauss ("Strauss Decl."), Exh. 1 (Declaration of Thomas Pollock, ¶ 2).)

Plaintiffs advance three arguments in Opposition. First, Plaintiffs argue that Federal does not identify *why* the name of the prospective client is necessary to evaluate the privilege claim and that, to the contrary, it is not necessary.

Plaintiffs additionally argue that they are entitled to conceal this information because disclosure of the identity would necessarily reveal the substance of the confidential communication in violation of the principle in *Rosso, Johnson, Rosso & Ebersold v. Sup. Ct.* (1987) 191 Cal.App.3d 1514, 1519 ["Since disclosure here reveals the problem of the client, this is one of the exceptional cases where the identity of the client should be protected."] Plaintiffs explain that: "In determining how [the December Subpoena] was to be fulfilled, counsel for DLA Piper and counsel for Federal agreed upon four search terms DLA Piper would use in identifying potentially responsive documents: 'Galatea,' 'fire,' 'Chubb,' and 'Crystal Springs.'" Under these circumstances, disclosure of the prospective client's identity would not merely reveal the identity of a third party. Because the documents were identified solely through the

agreed keyword search methodology, disclosure of that individual's identity would necessarily disclose confidential information concerning the subject matter of the consultation and the legal issues for which advice was sought. In this context, the prospective client's identity is inseparable from the substance of the confidential communication, and disclosure of that identity would therefore invade the attorney-client privilege." (Opposition, 15:9-18.)

Finally, Plaintiffs argue that Federal cannot satisfy the balancing test required to overcome the privacy interest here. In support of the privacy interest, Plaintiffs offer evidence that Pollock has confirmed that the prospective client whose name has been withheld wishes to preserve his/hers/their privilege and privacy rights and does not want their identity disclosed. (Strauss Decl., Exh. 1, ¶ 2.)

As to Plaintiffs' first argument regarding Federal's failure to explain why the identity of the client is necessary to evaluate the privilege claim, Federal argues that it did explain this at pages 8-12 of its Motion, and that it is Plaintiffs' burden of establishing the preliminary facts necessary to support their privileged claim. (Reply, 8:8-9.)

Federal is mistaken for the following two reasons.

First, the "general principle [is] that a party who seeks a court's action in his favor bears the burden of persuasion thereon." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Thus, Federal carries the initial burden of persuasion for its requested relief—i.e., the need for the individual's identity. The *most* Federal states in terms of the need for the individual's identity is: "Without knowing who the participants are, Federal cannot assess whether the communications were truly made in furtherance of an attorney-client relationship or whether other exceptions apply." (Reply, 8:14-16; see also Mem., 11:7-9; Separate Statement, 4:26-5:1, 9:12-14.) This is vague and conclusory, and does not persuade the Court that the concealed identity prevents Federal from evaluating Plaintiffs' claim of privilege. Federal does not discuss the authority or standard for evaluating the attorney-client privilege, or articulate how the identity might make or break that evaluation. Nor does Federal offer any potential categories of exceptions, the applicability of which depend on an individual's identity.

Second, given that the statutory requirement for a privilege log falls under section 2031.310, it reasonably follows that the procedural requirements for a motion under section 2031.310 apply. That includes, as an initial matter, the moving party's burden of "set[ting] forth specific facts showing good cause justifying the discovery sought by the demand." (§ 2031.310, subd. (b)(1).) Thus, before reaching the merits of the parties' arguments as to the sufficiency of the privilege log, Federal has the burden to show there would be good cause for the production of documents appearing on the privilege log in the first place. As noted in the preceding Section C.2., Federal has failed to advance any good cause for the subject document demands in its December Subpoena to DLA Piper.

Based on the foregoing, Federal has failed to meet its burden on the motion. Thus, the motion to compel Plaintiffs to produce a supplemental privilege log is DENIED. This renders it unnecessary for the Court to consider Plaintiffs' additional arguments in Opposition, including

that it is entitled to conceal the identity because disclosure would necessarily reveal the substance of the confidential communication and that privacy interests outweigh disclosure.

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Jeffrey Fallin v. Thomas Orlando et al

25CV002076

ANGEL'S TREE CARE CORPORATION'S GENERAL AND SPECIAL DEMURRER TO JEFFREY FALLIN'S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Defendant Angel's Tree Care Corporation (ATC) is granted 10 Court days' leave from entry of the instant order to answer the Complaint.

A. PRELIMINARY MATTERS

Defendant, Cross Defendant and Cross-Complainant Angel's Tree Care Corporation (ATC) demurs, pursuant to Code of Civil Procedure 430.10, subdivisions (e) and (f), to each cause of action asserted by Plaintiff Jeffrey Fallin through his complaint (Complaint). ATC contends that the Complaint fails to allege facts sufficient to state a claim, and that the Complaint is fatally uncertain.

The gravamen of the Complaint is that Mr. Fallin suffered damages when ATC, at the direction of co-defendant Thomas Orlando, and without Mr. Fallin's permission, cut-down, destroyed, and removed "ten (10) large established shrubs" and "eight (8) mature and living trees" from Mr. Fallin's property. The Complaint purports to asserts claims against ATC for Trespass, Negligence, and Negligent, as well as Willful Trespass to Timber.

B. LEGAL BACKGROUND

A complaint must contain "facts constituting the cause of action." (Code Civ. Proc., § 425.10, subd. (a)(1).) "The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not state facts sufficient to constitute a cause of action . . . [and/or] . . . (f) The pleading is uncertain." (Code Civ. Proc., § 430.10.)

A demurrer on grounds that a plaintiff has failed to state a claim is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer "'does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.' [Citation.]" (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because, "[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff's ability to

prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. LEGAL ANALYSIS

1. The Grant Deed Does Not Establish that the Claims are Necessarily Barred

Mr. Fallin clearly alleges that, at all relevant times, he was the owner of the subject real property. (See Complaint at ¶¶ 9, 18, 25, 31, 40.) ATC argues that “[a]s pleaded in the Complaint, the work occurred on August 12, 2024. [Citation.] Ordinarily, a simple statement of ownership may well suffice. However, pursuant to the County Recorder’s records, the Grant Deed for the Property was not recorded until August 15, 2024. [Citation.]”

ATC’s request that the Court take judicial notice of the Grant Deed attached as Exhibit A to the Declaration of Peter A. Singler (Grant Deed) is GRANTED, subject to the following.

“Judicial notice may be taken of ‘the fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language, assuming there is no genuine dispute regarding the document’s authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (*Linda Vista Vill. San Diego Homeowners Assn., Inc. v. Tecolote Invs., LLC* (2015) 234 Cal.App.4th 166, 184 (*Linda Vista Village*); see also *Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 (*Green Foothills*) [held: trial court properly took judicial notice of the filing of a Notice of Determination].) Mr. Fallin does not, through the Opposition, dispute the document’s authenticity.

The Court, however, agrees with Mr. Fallin that none of the facts (1) reflected on the Grant Deed and (2) of which the Court is permitted to take judicial notice, is fatal to any of the claims asserted in the Complaint. Put simply, the fact that the Grant Deed was *recorded* on August 15, 2024, does not necessarily establish that Mr. Fallin did not own the subject property on August 12, 2024, when ATC is alleged to have removed and destroyed the trees and shrubs.

This is particularly true as the Grant Deed indicates that it was executed on July 12, 2024. As ATC appears to concede, transfer of title occurs upon delivery of the conveyance by the grantor, and acceptance by the grantee. (See Support Memo at 6:24-7:2; see also *Perry v. Wallner* (1962) 206 Cal.App.2d 218, 221 [“It is essential that there be a delivery of the conveyance with intent to transfer the title before a transfer of real property is valid”].) Nothing in the Grant Deed establishes (or even tends to suggest) that such delivery was accomplished *after* August 12, 2024.

Nevertheless, ATC argues that acts regarding delivery of the Grant Deed “are not alleged in the Complaint, and the public records defy an unexplained conclusory allegation of ownership in the Complaint.” (Support Memo at 7:2-3.)

The general rule is that a complaint is sufficient if it alleges ultimate, as opposed to evidentiary, facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (*Los Angeles*).) As noted above, the Complaint alleges the ultimate fact that Mr. Fallin owned the real property at the time of the events giving rise to his claims. The Court is unpersuaded that, because of the Grant Deed or otherwise, Mr. Fallin is required to allege anything more.

Finally, “the public records defy an unexplained conclusory allegation of ownership in the Complaint” only when inferences therefrom are drawn against Mr. Fallin. On demurrer, however, the Court must make all reasonable inferences “liberally in favor of the pleader.” (*Skopp v. Weaver, supra*, 16 Cal.3d at 438.)

2. The Trespass Claim is Adequately Pled

ATC’s first argument – that Mr. Fallin fails to allege ownership of the real property – is addressed above.

ATC next argues that Mr. Fallin fails to adequately allege the element of defendant’s intentional, reckless, or negligent entry onto the property. ATC acknowledges the allegations of paragraph 20 of the Complaint that “Orlando instructed Angels and its employees to intentionally, negligently and/or recklessly enter onto Plaintiff’s PROPERTY for the purpose of performing tree and shrub removal on the PROPERTY,” but contends that “this [is not a factual allegation at all. It is a ‘contention’ (aka an argument), based on ‘information and belief.’ In other words, it is a legal conclusion, not a statement of fact. In still other words, it is a ‘lawyer’s argument’ to be ‘disregarded.’” (Support Memo at (8:9-12.)

The Court disagrees.

Again, the general rule is that a complaint is sufficient if it alleges ultimate, as opposed to evidentiary, facts. (See *Los Angeles, supra*, 42 Cal.4th at 550.) “‘In order to plead a cause of action, the complaint must contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language.’ (Code. Civ. Proc., § 425.10, subd. (a).) While it is true that pleading conclusions of law does not fulfill this requirement, it has long been recognized that ‘[t]he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them ‘ultimate facts’ or ‘conclusions of fact.’” [Citations.] What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.]’ [Citation.]’ It has been consistently held that “‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.]” (*Doheny Park Terrace Homeowners Association, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099 (*Doheny Park*)).

The Court finds the allegations of paragraph 20 of the Complaint sufficient to apprise ATC of the basis upon which Mr. Fallin seeks relief.

ATC next argues that “there is no allegation that ATC actually entered upon Fallin's property.” Perhaps not; explicitly. However, entry onto the property is not only a reasonable, but an unavoidable inference from Plaintiff's allegation that “On or about, August 12, 2024, Defendants, without Plaintiff's consent, cut down trees and removed shrubs on Plaintiff's PROPERTY.” (Complaint at ¶ 11.) The Court finds this inference, in the context of paragraph 20's allegation that ATC “Orlando instructed Angels and its employees to intentionally, negligently and/or recklessly enter onto Plaintiff's PROPERTY for the purpose of performing tree and shrub removal on the PROPERTY” sufficient to satisfy the entry element of the Trespassing claim.

ATC argues that “[a]s to the third essential element (lack of permission), the Complaint unequivocally states otherwise, to wit: ATC was hired and instructed to enter the Property and cut down the trees.” (Support Memo at 8:17-19, citing Complaint, at ¶¶ 10, 20.)

The Court finds that this element is adequately pled by the allegations that Mr. Fallin owned the subject property (discussed above), and the allegation that “FALLIN did not consent to ORLANDO'S or ANGELS' presence on the PROPERTY.” (Complaint at ¶ 2; see also *Smith v. Cap Concrete, Inc.* (1982) 133 Cal.App.3d 769, 778 [“A good faith belief that entry has been authorized or permitted provides no excuse for infringement of property rights if consent was not in fact given by the property owner whose rights are at issue”].)

3. The Fact that Trespass to Trees is Not a Separate Claim is No Ground for Demurrer

ATC correctly notes that a claim for Trespass to Trees (or “injury to trees”) is simply a Trespass cause of action, and that Civil Code section 3346 provides only a particularized from of damages therefor.

These arguments, in effect, take issue with Mr. Fallin's organization of the Complaint, and the names given to the sections thereof. The Court finds, in them, no grounds for demurrer. “Even though the plaintiffs labeled their causes of action, that does not mean they are bound by those labels. It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings or the character of the damage recovery suggested in connection with the prayer for relief. (Citation omitted.)” (*Jaffe v. Carroll* (1973) 35 Cal.App.3d 53, 57.) “The courts of this state have, of course, long since departed from holding a plaintiff strictly to the ‘form of action’ he has pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained.” (*Ibid.*)

Because Mr. Fallin has alleged facts sufficient to state a claim for Trespass, the additional allegations of paragraphs 31 through 46 (labelled the Third Cause of Action for Trespass to Timber – Negligent or Reckless and Fourth Cause of Action for Trespass to Timber – Willful and Malicious Conduct), even though they may not state a distinct claim, support Mr. Fallin's prayer for damages vis-à-vis Civil Code section 3346 and are not separately subject to demurrer.

4. Negligence

The Court finds no merit in ATC’s arguments that Mr. Fallin failed to allege that ATC owed Fallin a duty of care.

“In determining liability for negligence, we begin always with the command of Civil Code section 1714, subdivision (a) . . .” (*Christensen v. Super. Ct.* (1991) 54 Cal.3d 868, 885 [*Christiansen*].) That statute provides, “[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civil Code, § 1714, subd. (a).) “In the absence of a statutory provision limiting this rule, exceptions to the general principle imposing liability for negligence are recognized only when clearly supported by public policy.” (*Christiansen, supra*, at p. 885.)

That this general provision is broad enough to include a duty to avoid trespassing onto the property of another and causing damage to timber thereon is made clear by Civil Code section 3346. This duty is precisely what Mr. Fallin alleges through the Complaint.

5. ATC Fails to Persuade the Court that the Complaint is Uncertain

A demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain ambiguities can be clarified under modern discovery procedures. (See *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135 (*Lickiss*) [held: a demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain, ambiguities can be clarified under modern discovery procedures]) As noted above, “a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.]” (*Doheny Park, supra*, 132 Cal.App.4th at 1098-1099.)

The Court finds that the Complaint is intelligible and articulates the allegations sufficiently to acquaint ATC with the nature, source and extent of the claims against it.

6. Conclusion

Based on the foregoing, the demurrer is OVERRULED. ATC is granted 10 Court days’ leave from entry of the instant order to answer the Complaint.

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Zhi Wei Liu v. Napa Crossing East II, LLC

25CV002180

MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING: The motion is GRANTED. The clerk is directed to set aside the Default entered against Defendant Napa Crossing East II, LLC (“Defendant”) on January 15,

2026 and the Default Judgment entered against Defendant on April 6, 2026. Defendant's request for monetary sanctions is DENIED. Defendant is granted 10 days' leave to file the Answer in substantially the same form as that attached as Exhibit A to the Motion. Defendant is ordered to pay to Plaintiff, care of its attorneys of record, compensatory legal fees and costs in the amount of \$3,123.48, within 10 days of this ruling.

Defendant Napa Crossing East II, LLC ("Defendant") moves, pursuant to California Code of Civil Procedure section 473, subdivision (b),⁶ for an order to set aside the Clerk's Default, and if entered, Default Judgment entered on January 15, 2026.

"The court may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect The application . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

Notwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.* Emphasis added.) "The court *shall*, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." (*Id.* Emphasis added.) As long as the default resulted from attorney neglect, the attorney's "affidavit of fault" compels relief from both the default and any resulting default judgment. (See *Cisneros v. Vuevo* (1995) 37 Cal.App.4th 906, 909, fn. 2.)

Here, Defendant's attorney submitted an attorney's affidavit of fault attesting to the attorney's mistake and/or neglect. (Declaration of Carter Glahn ("Glahn Decl."), at ¶¶ 3-5, 11.) While the Glahn Declaration places an alternate fault on Plaintiff's lack of service, there is no evidence rebutting Plaintiff's 10/30/25 Proof of Service. (See *id.*, ¶ 3.) While the Reply appears to place the fault on Defendant, that is inconsistent with the position of Defendant's Motion. (See *ibid.* ["[A]ny delay in the filing of any responsive pleading . . . was not the fault of the Defendant in any case."].)

Finally, Defendant's reliance on Plaintiff's failure to contact Defendant prior to requesting default in violation of section 583.130 (requiring all parties to cooperate in bringing the action to trial or other disposition) is unavailing. Plaintiff submits evidence showing that its counsel complied with section 583.130, by serving a courtesy copy on Defendant's counsel in addition to formal notice, receiving confirmation by Defendant's counsel of receipt of the complaint, waiting additional time prior to requesting default, and working towards a stipulation to vacate default. This is not analogous to the facts in *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, relied upon by Defendant. Moreover, even if Plaintiff's counsel violated an ethical duty to

⁶ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

warn Defendant’s counsel before requesting default, that, alone, does not serve as grounds to vacate default without excusable neglect, mistake, inadvertence, etc. on the part of Defendant’s counsel. The Court finds no excusable mistake or neglect sufficiently articulated in the Glahn Decl.

Importantly, “[w]here an ‘attorney affidavit of fault’ is filed, there is no requirement that the attorney’s mistake, inadvertence, etc. be excusable. Relief *must* be granted even where the default resulted from *inexcusable* neglect by defendant’s attorney.” (Weil and Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group, 2026) ¶ 5:295; see also *Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438-41 [The attorney’s affidavit of fault need not include an explanation of the reasons for the attorney’s mistake, inadvertence, surprise or neglect.].) Based on the foregoing, the Motion is GRANTED.

Defendant’s request for monetary sanctions against Plaintiff’s counsel is DENIED on the ground that Defendant provides no authority in support thereof.

Plaintiff’s request for Defendant’s counsel to pay reasonable compensatory legal fees and costs associated with the entry of default and default judgment filings, totaling \$6,246.95, pursuant to section 473, subdivision(b), is GRANTED IN PART. The Court is unable to find the total amount requested is reasonable, as counsel provides no support for the hourly rate and no explanation of the hours spent. (See Declaration of Sean M. O’Neill, at ¶ 20.) The Court reduces the requested amount by half, as that reduction comprises six reasonable hours of work regarding default at a rate of approximately \$500/hr.

****at 9:30 a.m.****

**Napa County Flood Control and Water Conservation
District et al v. California Vacation Holdings Group, LLC et al**

**25CV000695
(24CV001395)**

PLAINTIFF CALIFORNIA VACATION CLUB’S MOTION FOR SUMMARY
ADJUDICATION OF THE FIRST AND THIRD CAUSES OF ACTION

TENTATIVE RULING: The motion is DENIED.

A. PRELIMINARY MATTERS

Pursuant to the Notice of Motion, Plaintiff California Vacation Club (CVC and Plaintiff) moves, pursuant to Code of Civil Procedure section 437c, for summary adjudication on Plaintiff’s Breach of Contract cause of action (Breach of Contract Claim) and Declaratory Relief cause of action (Dec. Relief Claim) asserted against Defendant California Vacation Holdings Group, LLC (CVHG and Defendant). (See Notice of Motion at 1:25-27 [“Plaintiff . . . move[s] for summary adjudication against Defendant . . . as to the first, and third causes of action asserted by Plaintiff in its First Amended Verified Complaint”]; see also *id.* at 2:9-16 [“The court must

find in favor of Plaintiff on the first cause of action for breach of governing documents . . . [and] . . . The Court must find in favor of Plaintiff on the third cause of action for declaratory relief”].)

1. Requests for Judicial Notice

The Court rules on CVC’s Requests for Judicial Notice as follows.

Request No. 1: GRANTED.

CVC asks the Court to take judicial notice of the Declaration of Vacation Ownership Plan (Ownership Plan), presumably on grounds that it has been filed with the Napa County Recorder.

“Judicial notice may be taken of ‘the fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language, assuming there is no genuine dispute regarding the document’s authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (*Linda Vista Vill. San Diego Homeowners Assn., Inc. v. Tecolote Invs., LLC* (2015) 234 Cal.App.4th 166, 184 (*Linda Vista Village*); see also *Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 (*Green Foothills*) [held: trial court properly took judicial notice of the filing of a Notice of Determination].)

There appears to be no dispute regarding the authenticity of the copy of the Ownership Plan attached as Exhibit 1 to CVC’s Index of Evidence. Moreover, the Court finds that this copy is independently authenticated by the Declaration of Doreen Bechard.

Request Nos. 2-6: GRANTED. The Court takes judicial notice of its files in the consolidated action, but not, necessarily, for the truth of matters asserted therein.

Request Nos. 7-12: DENIED. The Court does not find that the respective subjects of these requests are subject to judicial notice as undisputable facts. Moreover, the Court does not find that any of the subjects are material to its analysis and ruling on the instant motion. (See *In re Tobacco Cases, II*, *JCCP* 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed”

The Court rules on CVHG’s Requests for Judicial Notice as follows.

Request No. 1: GRANTED.

Request Nos. 2-4: GRANTED. The Court takes judicial notice of the subject documents, but not for the truth of the matters asserted therein.

2. Evidentiary Objections

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of

the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Because, as discussed below, CVC fails to include purportedly undisputed material facts sufficient to carry its initial burdens of persuasion, CVC’s evidentiary submissions are not material to the Court’s resolution of the instant motion. As a result, the Court declines to rule on CVHG’s evidentiary objections.

The Court rules as follows on CVC’s evidentiary objections.

Declaration of Brandon Bizar, Objection Nos. 1-3: OVERRULED. The Court finds that Paragraph 1 of the Declaration, together with the allegations of the FAC, and the purportedly undisputed material facts in CVC’s Separate Statement regarding the nature of CVHG’s participation in the Resort are sufficient to lay a foundation for the evidence, for the purpose of the instant motion.

Compendium of Evidence, Objection No. 2: OVERRULED. See Declaration of Brandon Bizar at ¶¶ 1 and 6.

Compendium of Evidence, Objection No. 3: OVERRULED. The Court does not admit the evidence “to establish that the floodwall will permit year-round use and a ‘net gain’ of Points (see Objection at 2:17-19) but rather as evidence that the net change in points remains speculative. (See below.)

The Court declines to rule on the remainder of CVC’s evidentiary objections on grounds that none of the subjects thereof are relevant to the Court’s analysis and ruling on the instant Motion. (See Code Civ. Proc., § 437c, subd. (q).)

B. LEGAL BACKGROUND

“A party may move for summary adjudication as to one or more causes of action within an action, . . . one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, . . . that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, . . . a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Moreover, “a plaintiff may, despite the confusing language of the statute, move for summary adjudication of a cause of action, if the plaintiff asserts there is ‘no defense’ to that cause of action. Further, the plaintiff’s burden of proof on such a motion is defined by subdivision (p)(1) of Code of Civil Procedure section 437c; the plaintiff must ‘prove[] each element of the cause of action entitling the party to judgment on that cause of action.’” (*Paramount Petroleum Corp. v. Super. Ct.* (2014) 227 Cal.App.4th 226, 241 (*Paramount Petroleum*).)

Summary relief is permitted “only where it is *perfectly plain* that there is no substantial issue to be tried.” (*Walsh v. Walsh* (1941) 18 Cal.2d 439, 442. *Italics added.*) “[A] plaintiff bears

the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*), quoting Code Civ. Proc., § 437c.) The moving party also bears an initial burden of production to make a prima-facie showing of the nonexistence of any triable issue of material fact. (*Id.* at 850-51.) “If a plaintiff who would bear the burden of proof by a preponderance of evidence at trial moves for summary judgment, he must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not – otherwise, he would not be entitled to judgment as a matter of law but would have to present his evidence to a trier of fact.” (*Id.* at 851.) If the party carries this burden, there is a shift and the opposing party is then subjected to a burden of production to make a prima-facie showing. (*Id.* at 850.) “[T]here is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party . . . has by affidavit stated ‘facts establishing every element necessary to sustain a judgment in his favor.’ ” [Citation.] . . . Summary judgments cannot be granted ‘by default’ [citation].” (*Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44, 50.)

“In ruling on the motion, the trial court views the evidence and inferences therefrom in the light most favorable to the opposing party.” (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 588.)

C. LEGAL ANALYSIS

1. Plaintiff is Not Entitled to Summary Adjudication as to the Breach of Contract Cause of Action

“The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result.” (*CSAA Ins. Exchange v. Hodroj* (2021) 72 Cal.App.5th 272, 276.) “A plaintiff can obtain summary adjudication of a cause of action only by proving ‘each element of the cause of action entitling the party to judgment on that cause of action.’ [Citation.] As damages are an element of a breach of contract cause of action [citation], a plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.” (*Paramount Petroleum, supra*, 227 Cal.App.4th at 241.)

There is no purportedly undisputed material fact in CVC’s Separate Statement which, if true, would make a *prima facie* showing of the damages suffered by CVC from the alleged breach of contract. Similarly, CVC presents no argument in the Memorandum filed in support of the motion (Support Memo.) on the subject of damages. As such, CVC is not entitled to summary adjudication as to its Breach of Contract Claim. (See *Paramount Petroleum, supra*, 227 Cal.App.4th at 241.)

Through the Reply, CVC appears to concede that it did not, through the moving papers, address damages. CVC attempts to recast the motion as one seeking summary adjudication as to CVHG’s duty under the alleged contract. (See Reply at 7:25-8:5 [“summary adjudication is available not only as to a ‘cause of action’ but also as to ‘an issue of duty’”].) The Court agrees

that summary adjudication is *available* as to an issue of duty. However, CVC did not provide proper notice that it was moving for summary adjudication on that grounds.

“A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” (Cal. Rules of Ct., rule 3.1110; see also Code Civ. Proc. § 1010 [“the notice of a motion, other than for a new trial, must state . . . the grounds upon which it will be made”]; *People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726 [held: trial court properly concluded that issue raised in supplemental papers did not comply with statutory notice requirements].)

As noted above, the Notice of Motion states “Plaintiff . . . move[s] for summary adjudication against Defendant . . . as to the first, and third causes of action asserted by Plaintiff in its First Amended Verified Complaint” and further states “[t]he court must find in favor of Plaintiff on the first cause of action for breach of governing documents . . .” (*Id.* at 1:25-27, 2:9-12.) These statements are consistent with the [Proposed] Order filed in support of the Motion which provides, in relevant part, that “The Court finds in favor of Plaintiff on the first cause of action for breach of governing documents because Defendant admitted to having only 1,305,000 points and is entitled to only 15.79% of the condemnation proceeds.” (*Id.* at 2:5-7.) Moreover, the Court can find no discussion, in any of the moving papers, and no provision of the [Proposed] Order, that would put either CVHG or the Court on notice that, by the instant motion, CVC sought summary adjudication only as to one or more duties arising under the alleged contract.

Based on the foregoing, the motion is DENIED as to CVC’s Breach of Contract Claim.

2. Plaintiff is Not Entitled to Summary Adjudication as to the Declarative Relief Cause of Action

Pursuant to the Notice of Motion, CVC asserts that “[t]he Court must find in favor of Plaintiff on the third cause of action for declaratory relief because Defendant admitted to having only 1,305,000 points and is entitled to only 15.79% of the 16 condemnation proceeds.” (Notice of Motion at 2:14-16.)

As suggested by its name, declaratory relief is a declaration by a court regarding the rights and duties of the parties. An action for declaratory relief involves two essential elements: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; see also Code Civ. Proc., § 1060.) “A proper subject includes a declaration of one’s rights and duties under a contract.” (*Cordoba Corp. v. City of Industry* (2023) 87 Cal.App.5th 145, 147.) “An ‘actual controversy’ under the declaratory relief statute is ‘one which admits of definitive and conclusive relief by judgment within the field of judicial administration, as distinguished from an advisory opinion upon a particular or hypothetical state of facts.’ [Citation.]” (*Gilb v. Chiang* (2010) 186 Cal.App.4th 444, 459.)

The pleadings contour the scope of issues on a motion for summary judgment. (See *Orange County Air Pollution Control Dist. V. Super. Ct.* (1972) 27 Cal.App.3d 109, 112.)

Summary judgment cannot be granted on a ground not raised by the pleadings. (*Metromedia, Inc. v. City of San Diego* (1980) 26 Cal. 3d 848, 885, revd. on other grounds (1981) 453 U.S. 490.)

Finally, “all material facts must be set forth in the separate statement. . . . ‘[I]f it is not set forth in the separate statement, it does not exist.’” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d, 327, 337, quoting Zebrowski, *The Summary Adjudication Pyramid* (Nov. 1989) 12 L.A. Law. 28, 29; see also *Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1214 [“although sometimes apparently overlooked [citation], the ‘it’ in [the] ‘golden rule,’ . . . [citation], is the undisputed material fact, which must appear in the separate statement or be disregarded, not the underlying evidence supporting the fact”].)

Through the FAC, CVC seeks the following declarations from the Court:

“3. that CVHG’s actions, as set forth in this Complaint, violate the Declaration Section 6.3;

4. that the DISTRICT’s appraisal does not include a valuation of the leasehold interest pursuant to Section 6.4 of the Declaration and possessory interest of Plaintiff pursuant to the LEASE and thus the appraisal and the PSA must be revised to reflect Plaintiff’s possessory interest as set forth herein; (and)

5. that Defendants must comply with the allocation formula set forth in the DECLARATION Section 6.3.” (See FAC at 12:4-11.)

As used in the FAC, the phrase “DECLARATION Section 6.3” refers to section 6.3 of the Ownership Plan, which governs the distribution of proceeds from any condemnation action (Section 6.3). (See Index of Exhibits at Exh. 1.)

Because “[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action . . .” (Code Civ. Proc., § 437c, subd. (f)(1)), CVC is entitled to summary adjudication on its Dec. Relief Claim if, through the moving papers, it carries both its burdens of persuasion and proof *as to each of the foregoing declarations*, and if CVHG is not, thereafter, able to introduce evidence sufficient to create a triable question of fact.

It is apparent that a dispute exists between the parties regarding the proper interpretation of Section 6.3. However, as CVHG notes through the Opposition, CVC does not, through the FAC, ask the Court for a declaration as to which of the parties’ interpretations is correct. None of the three prayers specific to the Dec. Relief Claim, quoted above, addresses this issue. Rather, through the FAC, CVC goes one step further and asks the Court to declare that “CVHG’s actions . . . violate the [Ownership Plan] Section 6.3 . . .” (FAC at 12:4-5.) The Court is unable to construe any of the purported undisputed material facts set forth in the Separate Statement as describing one or more actions by CVHG which violate(s) Section 6.3.

Moreover, evidence submitted by CVHG suggests that the parties’ dispute regarding the proper interpretation of Section 6.3 of the Ownership Plan may not yet be ripe, and therefore, not

the proper subject of a declaratory relief cause of action. Even if this evidence is not sufficient to establish that the issue is not yet ripe, it is sufficient to show that a triable question of material fact exists relating to whether Section 6.3(a), or Section 6.3(b) applies to the instant controversy.

“Facts and not conclusions of law must be pleaded which show a controversy of concrete actuality as opposed to one which is merely academic or hypothetical (Citation.); for, as has been aptly said, a statute providing for a declaration of rights ‘does not constitute a court a fountain of legal advice.’ (Citation.)” (*Wilson v. Transit Authority of Sacramento* (1962) 199 Cal.App.2d 716, 721.) “While section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’ [citation], ‘an actual controversy that is currently active is required for such relief to be issued, and both standing, and ripeness are appropriate criteria in that determination. [Citation.]’ [Citation.] ‘One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that the plaintiff is asserting, which must follow some recognized or cognizable legal theories that are related to subjects and requests for relief that are properly before the court.’” (*D. Cummins Corp. v. United States Fidelity & Guaranty Co.* (2016) 246 Cal.App.4th 1484, 1489.)

CVHG submits evidence that the actual number of “lost points” from the condemnation is not yet capable of being determined. (See, *e.g.*, Responsive Separate Statement at 10:8-16, 12:10-13:14 and evidenced cited therein.) It is undisputed that the question of whether Section 6.3(a) or 6.3(b) governs any particular condemnation event varies according to the number of points lost as a result of that event. If the number of points lost as a result of the current taking by Napa County Flood Control and Water Conservation District is not yet knowable, it would be impossible to determine which of subdivisions of (a) or (b) of Section 6.3 applies, and therefore the question of whether CVHG’s actions violate Section 6.3 of the Ownership Plan would not yet be ripe for judicial determination.

Even assuming, *arguendo*, that the number of points lost is knowable, CVHG’s evidence is sufficient to show a triable question regarding how many points have been lost as a result of the condemnation – a material fact.

As noted above, “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) CVC has not carried its burden of persuading the Court that “it is perfectly plain that there is no substantial issue to be tried” (*Walsh v. Walsh*, *supra*, 18 Cal.2d at 442) as to its prayer for a declaration “that CVHG’s actions, as set forth in this Complaint, violate the Declaration Section 6.3.” (FAC at 12:4-5.) Moreover, even if CVC had carried this burden, CVHG has produced evidence sufficient to show, at a minimum, a triable question of material fact.

Based on the foregoing, the Motion is DENIED as to the Dec. Relief Claim.